

Name

Address

City, State, Zip

Phone

Email

**Check your email.** You will receive information and documents at this email address.

In the [ ] District [ ] Justice Court of Utah

Judicial District

County

Court Address

|            |                                                                                        |
|------------|----------------------------------------------------------------------------------------|
| In Re:     | <div><b>Order on Petition to Expunge Records with Certificate of Eligibility</b></div> |
| Petitioner | <div>Case Number</div>                                                                 |
|            | <div>Judge</div>                                                                       |

The matter before the court is a Petition to Expunge Records. This matter is being resolved by:

[ ] The pleadings and other papers of the parties, or

[ ] A hearing held on (date), notice of which was served on all parties and at which the court considered the pleadings and evidence presented by the parties.

Having considered the documents filed with the court, the evidence, and the arguments, and now being fully informed,

**The Court Finds by Clear and Convincing Evidence that:**

1. The petition is sufficient.

2. The certificate of eligibility was valid at the time the petition for expungement was filed with the court and contains the information needed for the court to issue an order for expungement.

3. The statutory requirements have been met.

Jordan A. Reyes

Name

Address

City, State, Zip

Phone

Email

**Check your email.** You will receive information and documents at this email address.

In the [ ] District [ ] Justice Court of Utah

Judicial District

County

Court Address

|            |                                                                                        |
|------------|----------------------------------------------------------------------------------------|
| In Re:     | <div><b>Order on Petition to Expunge Records with Certificate of Eligibility</b></div> |
| Petitioner | <div><div>21CR40817</div><div>Case Number</div></div>                                  |
|            | <div>Judge</div>                                                                       |

The matter before the court is a Petition to Expunge Records. This matter is being resolved by:

[ ] The pleadings and other papers of the parties, or

[ ] A hearing held on (date), notice of which was served on all parties and at which the court considered the pleadings and evidence presented by the parties.

Having considered the documents filed with the court, the evidence, and the arguments, and now being fully informed,

**The Court Finds by Clear and Convincing Evidence that:**

1. The petition is sufficient.

2. The certificate of eligibility was valid at the time the petition for expungement was filed with the court and contains the information needed for the court to issue an order for expungement.

3. The statutory requirements have been met.

4. Expunging the petitioner's records will not harm the interests of the public.
5. The court also finds that: (choose any that apply)
- ☐ the expungement petition is for a case that was dismissed without prejudice or without condition. The prosecutor has consented to the expungement, and the prosecutor has indicated that they have not filed and do not intend to file related charges.
- ☐ the court received an objection. The expungement petition is for a charge dismissed because of a plea in abeyance agreement, and the charge is eligible for enhancement, but there is good cause for the court to grant the expungement.

**The Court Concludes:**

6. The records of petitioner's arrest, investigation, and detention relating to: (choose one)
- ☐ the following incidents: \_\_\_\_\_; (law enforcement agency file number) of \_\_\_\_\_  
(law enforcement agency name) should be expunged.
- ☐ case number: \_\_\_\_\_ should be expunged.

**The Court Orders:**

7. The records of petitioner's arrest, investigation, detention relating to:
- ☐ the following incidents: \_\_\_\_\_; (law enforcement agency file number) of \_\_\_\_\_  
(law enforcement agency name) will be expunged.
- ☐ case number: \_\_\_\_\_ will be expunged.
- Petitioner may deliver a copy of this order to any government agency or official that may have such records.
  - The Bureau of Criminal Identification must notify all criminal justice agencies affected by this order.
  - The clerk of the court must expunge all related court records as provided by Rule 4-205.

4. Expunging the petitioner's records will not harm the interests of the public.
5. The court also finds that: (choose any that apply)
- ☐ the expungement petition is for a case that was dismissed without prejudice or without condition. The prosecutor has consented to the expungement, and the prosecutor has indicated that they have not filed and do not intend to file related charges.
- ☐ the court received an objection. The expungement petition is for a charge dismissed because of a plea in abeyance agreement, and the charge is eligible for enhancement, but there is good cause for the court to grant the expungement.

**The Court Concludes:**

6. The records of petitioner's arrest, investigation, and detention relating to: (choose one)
- ☐ the following incidents: \_\_\_\_\_; (law enforcement agency file number) of \_\_\_\_\_  
(law enforcement agency name) should be expunged.
- ☐ case number: \_\_\_\_\_ should be expunged.

**The Court Orders:**

7. The records of petitioner's arrest, investigation, detention relating to:
- ☐ the following incidents: \_\_\_\_\_; (law enforcement agency file number) of \_\_\_\_\_  
(law enforcement agency name) will be expunged.
- ☐ case number: \_\_\_\_\_ will be expunged.
- Petitioner may deliver a copy of this order to any government agency or official that may have such records.
  - The Bureau of Criminal Identification must notify all criminal justice agencies affected by this order.
  - The clerk of the court must expunge all related court records as provided by Rule 4-205.

- Any other government agency or official receiving this order must expunge related records as provided by Utah Code, Title 77, Chapter 40a, Part 4.
- Any government agency or official receiving this order may not divulge information identifying the petitioner.
- Any government agency or official receiving this order must respond to any inquiry as though the arrest or conviction did not occur.

Judge's signature may instead appear at the top of the first page of this document.

\_\_\_\_\_  
Date

Signature ► \_\_\_\_\_  
Judge \_\_\_\_\_

- Any other government agency or official receiving this order must expunge related records as provided by Utah Code, Title 77, Chapter 40a, Part 4.
- Any government agency or official receiving this order may not divulge information identifying the petitioner.
- Any government agency or official receiving this order must respond to any inquiry as though the arrest or conviction did not occur.

Judge's signature may instead appear at the top of the first page of this document.

\_\_\_\_\_  
Date

Signature ► \_\_\_\_\_  
Judge \_\_\_\_\_